

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3041

By: West (Josh) of the House

and

Woods of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to sales transactions; amending 14A
12 O.S. 2021, Section 2-211, as amended by Section 1,
13 Chapter 410, O.S.L. 2025 (14A O.S. Supp. 2025,
14 Section 2-211), which relates to discounts inducing
15 payment by case, check, or similar means; setting the
16 maximum surcharge amount for a credit card; updating
17 references; providing an effective date; and
18 declaring an emergency.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. AMENDATORY 14A O.S. 2021, Section 2-211, as
21 amended by Section 1, Chapter 410, O.S.L. 2025 (14A O.S. Supp. 2025,
22 Section 2-211), is amended to read as follows:

23 Section 2-211. A. With respect to all sales, service, and
24 lease transactions including, but not limited to, any consumer
 credit sales transaction, a discount which a seller offers, allows,

1 or otherwise makes available for the purpose of inducing payment by
2 cash, check, debit card, or similar means rather than by use of a
3 credit card shall not constitute a credit service charge as
4 determined under Section 2-109 of this title if the discount is
5 offered to all prospective buyers clearly and conspicuously in
6 accordance with regulations of the Administrator of Consumer Credit.
7 There shall be no limit on the discount that may be offered by the
8 seller. Pursuant to the regulations of the Administrator, a seller
9 who provides a discount not in accordance with regulations shall
10 disclose such information to the Administrator.

11 B. No seller may impose a surcharge on a cardholder who elects
12 to pay using a credit card instead of paying by cash, check, debit
13 card, or similar means unless the seller complies with the following
14 requirements:

15 1. Notice displaying the amount of the surcharge applicable
16 shall be clearly and conspicuously posted at the point of entry and
17 the point of sale for in-person transactions and the home page and
18 the point-of-sale webpage for online transactions. Notice,
19 including all required information, shall be verbally disclosed to
20 the customer for transactions processed over the phone; and

21 2. No surcharge shall exceed two percent (2%) of the total
22 transaction or the actual amount to be charged to the ~~person or~~
23 ~~retailer~~ seller to process the credit card transaction, whichever is
24 ~~less~~ greater. A customer shall not be considered to have chosen to

1 use a credit card as a method of payment under this section if, at
2 the time of the transaction, the ~~person or retailer~~ seller accepts
3 only credit cards as payment.

4 C. A seller who is registered with the United States Department
5 of the Treasury as a money transmitter pursuant to 31 C.F.R.,
6 Section 103.41, and who provides an electronic funds transmission
7 service, including service by telephone and the Internet, may charge
8 a different price for a funds transmission service based on the mode
9 of transmission used in the transaction without violating this
10 section so long as the price charged for a service paid for with an
11 open-end credit card or debit card account is not greater than the
12 price charged for such service if paid for with currency or other
13 similar means accepted within the same mode of transmission.

14 D. Any seller subject to the provisions of subsection C of this
15 section shall either conduct business at a location in this state or
16 comply with the provisions of Section 1022 of Title 18 ~~of the~~
17 ~~Oklahoma Statutes.~~

18 E. As used in this section:

19 1. "Credit card" means any instrument or device, whether known
20 as a credit card, credit plate, charge card, or by any other name,
21 issued with or without fee by an issuer for the use of the
22 cardholder in money, goods or services, or anything of value on
23 credit;
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1 2. "Seller" means any person, entity, or retailer doing
2 business in this state in any sales, service, or lease transaction
3 including, but not limited to, any consumer credit sales
4 transaction; and

5 3. "Surcharge" means any additional amount imposed by a person,
6 entity, or retailer at the time of a credit card transaction that
7 increases the amount of the transaction for the use of a credit card
8 as payment.

9 F. For purposes of this section, a private educational
10 institution as defined in paragraph (e) of Section 3102 of Title 70
11 ~~of the Oklahoma Statutes~~, a private school defined as a nonpublic
12 entity conducting an educational program for at least one grade
13 between prekindergarten through twelve, a municipality as defined in
14 paragraph 5 of Section 1-102 of Title 11 ~~of the Oklahoma Statutes~~ or
15 a public trust with a municipality as its beneficiary may charge a
16 service fee. The service fee shall be limited to bank processing
17 fees and financial transaction fees, the cost of providing for
18 secure transaction, portal fees, and fees necessary to compensate
19 for increased bandwidth incurred as a result of providing the
20 transaction.

21 SECTION 2. This act shall become effective July 1, 2026.

22 SECTION 3. It being immediately necessary for the preservation
23 of the public peace, health or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.
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4 COMMITTEE REPORT BY: COMMITTEE ON GOVERNMENT OVERSIGHT, dated
5 02/25/2026 - DO PASS, As Amended.
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